

The U.P. Directorate of Treasuries Ministerial Service Rules, 1978

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State of Uttar Pradesh - Act

The U.P. Directorate of Treasuries Ministerial Service Rules, 1978

UTTAR PRADESH

India

The U.P. Directorate of Treasuries Ministerial Service Rules, 1978

Rule THE-U-P-DIRECTORATE-OF-TREASURIES-MINISTERIAL-SERVICE-RULES-1978 of 1978

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The U.P. Directorate of Treasuries Ministerial Service Rules, 1978

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Part I ? General

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Directorate of Treasuries Ministerial Service Rules, 1978.

(2)

They shall come into force at once.

2.

Status of the Service.

- The Uttar Pradesh Directorate of Treasuries Ministerial Service is a subordinate Ministerial Service comprising Group 'C' posts.

3.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context-

(a)

'appointing authority' means the Director of Treasuries ;

(b)

'Citizen of India' means a person who is or is deemed to be a citizen of India under Part II of the Constitution ;

(c)

'Constitution' means the Constitution of India ;

(d)

'Director' means the Director of Treasuries, Uttar Pradesh ;

(e)

'Directorate' means Directorate of Treasuries, Uttar Pradesh ;

(f)

'Government' means the State Government of Uttar Pradesh ;

(g)

'Governor' means the Governor of Uttar Pradesh;

(h)

'member of service' means a person appointed in a substantive capacity under these rules or the rules or orders in force prior to the commencement of these rules to a post in the cadre of the service;

(i)

'year of recruitment' means the period of twelve months commencing from the first day of July of a calendar year.

Part II ? Cadre

4.

Cadre of service.

(1)

The strength of the service and of each category of posts therein shall be such as may be determined by the Governor from time to time.

(2)

The strength of the service and of each category of posts therein shall, until orders varying the same are passed under sub-rule (1) shall be as given in Appendix 'A':

Provided that-

(1)

the appointing authority may leave unfilled or the Governor may hold in abeyance any vacant post, without thereby entitling any person to compensation, and

(2)

The Governor may create such additional, permanent or temporary posts from time to time as he may consider proper.

Part III ? Recruitment

5.

Source of recruitment.

- Recruitment to the various categories of posts in the service shall be made from the following sources:

(1)

Held Clerk. - By promotion from amongst the permanent Senior Noters and Drafters on the basis of seniority subject to the rejection of the unfit.

(2)

Senior Noter and Drafter. - By promotion from amongst the permanent Junior Noters and Drafters, Record Keeper and Reference Clerk on the basis of seniority subject to the rejection of the unfit:

Provided that if suitable persons are not available for promotion the post may be filled by transfer of an employee having

experience of budget accounts and establishment work from any other Government department.

(3)

Junior Noter and Drafters/Record Keeper and Reference Clerk. - By promotion from amongst the permanent Despatcher/Register Keeper, Typist and permanent incumbents holding other posts in identical scale in the Directorate on the basis of seniority subject to the rejection of the unfit:

Provided that if suitable persons are not available for promotion, the post may be filled by transfer of an employee having experience of budget, accounts and establishment work, from any other Government department.

(4)

Despatcher, Typists and other posts of identical scale. - (i) By direct recruitment

(ii)

By promotion to the extent of 10 per cent of vacancies from amongst the permanent Group 'D' employees, who have passed the High School Examination of the Board of High School and Intermediate Education, Uttar Pradesh or any examination recognised as equivalent thereto.

(5)

Stenographer. - By direct recruitment.

(6)

Stenographer Selection Grade. - By promotion on the base of seniority subject to the rejection of unfit from amongst permanent stenographers.

6.

Reservation.

- Reservation for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories shall be in accordance with the orders of the Government in force at the time of the recruitment

Part IV ? Qualifications

7.

Nationality.

- A candidate for direct recruitment to a post in the service must be -

(a)

a citizen of India; or

(b)

a Tibetan refugee who came over to India before the 1st January, 1962, with the intention of permanently settling in India ; or

(c)

a person of Indian origin who has migrated from Pakistan, Burma, Ceylon or any of the East African countries of Kenya, Uganda and the United Republic of Tanzania (formerly Tanganyika and Zanzibar) with the intention of permanently settling in India:

Provided that a candidate belonging to category (b) or (c) above must be a person in whose favour a certificate of eligibility has been issued by the State Government:

Provided further that a candidate belonging to category (b) will also be required to obtain a certificate of eligibility granted by. the Deputy Inspector General of Police, Intelligence Branch, Uttar Pradesh:

Provided also that if a candidate belongs to category (c) above, no certificate of eligibility will be issued for a period of more than one year and the retention of such a candidate in service beyond a period of one year, shall be subject to his acquiring Indian citizenship.

Note. - A candidate in whose case a certificate of eligibility is necessary but the same has neither been issued nor refused, may be admitted to an examination or interview and he may also be provisionally appointed subject to the necessary certificate being obtained by him or issued in his favour.

8.

Academic qualifications.

- A candidate for direct recruitment to the various posts in the service must possess the following qualifications :

Post

Qualifications

Register Keeper, Despatcher and Typist

As prescribed in the Subordinate Officers
Ministerial Staff (Direct Recruitment) Rules, 1975.

Stenographer

(1)

Must have passed the Intermediate from the U.P.
Board of High School and Intermediate Education, Uttar Pradesh
or an examination, recognised by the Governor as equivalent
thereto.

(2)

Must have a minimum speed of 30 and 80 words
per minute in Hindi typewriting and shorthand, respectively.

9.

Preferential qualifications.

- A candidate who has-

(i)

served in the Territorial Army for a minimum period of two years, or

(ii)

obtained a 'B' certificate of National Cadet Corps, shall, other things being equal, be given preference in the matter of
direct recruitment.

10.

Age.

- A candidate for direct recruitment to the post of Routine Grade Clerk/Typist/Despatcher must be within the age limits
prescribed in the Subordinate Offices Ministerial Staff (Direct Recruitment) Rules, 1975. As regards the post of
Stenographers a candidate for direct recruitment must have attained the age of 21 years and must not have attained the
age of more than 27 years on January 1 of the year in which recruitment is to be made, if the posts are advertised during
the period January 1 to June 30, and on July 1, if the posts are advertised during the period July 1 to December 31:

Provided that the upper age limit in the case of candidates belonging to the Scheduled Castes, Scheduled Tribes and
such other categories as may be notified by the Government from time to time shall be greater by such number of years
as may be specified.

11.

Character.

- The character of a candidate for direct recruitment to a post in the service must be such as to render him suitable in all
respects for employment in Government service. The appointing authority shall satisfy itself on this point.

Note. - Person dismissed by the Union Government or by a State Government or by a Local Authority or a Corporation
or a Body owned or controlled by the Union Government or a State Government shall be ineligible for appointment to
any post in the service. Persons convicted of an offence involving moral turpitude shall also be ineligible.

12.

Marital status.

- A male candidate who has more than one wife living or a female candidate who has married a man already having a
wife living shall not be eligible for appointment to a post in the service :

Provided that the governor may, if satisfied that there exist special grounds for doing so, exempt any person from the
operation of this rule.

13.

Physical fitness.

- No candidate shall be appointed to a post in the service unless he be in good mental and bodily health and free from
any physical defect likely to interfere with the efficient performance of his duties. Before a candidate is finally approved
for appointment he shall be required to produce a Medical certificate of fitness in accordance with the rules framed
under Fundamental Rule 10, and contained in Chapter III of the Financial Handbook, Volume II, Parts II to IV :

Provided that a medical certificate of fitness shall not be required from a candidate belonging to candidate recruited by
promotion.

Part V ? Procedure for Recruitment

14.

Determination of vacancies.

- The appointing authority shall determine the number of vacancies to be filled during the course of the year as also the number of vacancies to be reserved for candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories under rule 6. The vacancies in respect of the post of Stenographer shall be intimated to the Employment Exchange and in respect of Register Keeper, Despatches and Typist to the District Selection Committee in accordance with the Subordinate Offices Ministerial Staff (Direct Recruitment) Rules, 1975.

15.

Procedure for direct recruitment to the post of Register Keeper, Despatcher/Typist.

- Recruitment to the posts of Register Keeper, Despatcher/Typist be made in accordance with the procedure laid down in the Subordinate Offices Ministerial Staff (Direct Recruitment) Rules, 1975.

16.

Procedure for direct requirement to the post of stenographer.

(1)

For the purpose of direct recruitment to the posts of Stenographer there shall be constituted a Selection Committee comprising -

1. Director of Treasuries,
2. Additional Director of Treasuries,
3. Deputy Director of Treasuries.

(2)

The Selection Committee shall scrutinize the applications and require the eligible candidates to appear in a competitive examination and in an interview.

Note. - The syllabus and procedure for competitive examination is given in Appendix 'B'

(3)

After the marks obtained by the candidate in the written test have been tabulated, the Selection Committee shall, having regard to the need for securing the representation of the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories in accordance with Rule 6, call for interview such number of candidates as, on the result of the written examination, have come up to the standard fixed by the committee in this respect. The marks awarded to each candidate in the interview shall be added to the marks obtained by him in the written test.

(4)

The Selection Committee shall prepare a list of candidates in order of merit, as disclosed by aggregate of marks obtained by them in the written test and interview. If two or more candidates obtain equal marks the candidates obtaining higher marks in the written test shall be placed higher. The number of the names in the list shall be larger but not larger by more than twice the number of vacancies.

17.

Procedure for recruitment by promotion.

(1)

Recruitment by promotion to the post of (1) Junior Noter and Drafter/Record Keeper, Reference Clerk; (2) Senior Noter and Drafter; (3) Head Clerk and Stenographer (Selection Grade) shall be made on the basis of seniority subject to the rejection of the unfit through a Selection Committee referred to in Rule 16.

(2)

The appointing authority, shall prepare an eligibility list of the candidates, arranged in order of seniority, and place it before the Selection Committee alongwith their character rolls and such other records, pertaining to them, as may be considered proper.

(3)

The Selection Committee shall consider the cases of candidates on the basis of records, referred to in sub-rule (2), and if it considers necessary, it may interview the candidates also.

(4)

The Selection Committee shall prepare list of selected candidates arranged in order of seniority and forward the same to the appointing authority.

Part VI ? Appointment, Probation, Confirmation and Seniority

18.

Appointment.

(1)

On the occurrence of substantive vacancies, the appointing authority shall make an appointment by taking candidates in order in which they stand in the list prepared under Rules 15, 16 or 17 as the case may be.

(2)

The appointing authority may make appointments in temporary and officiating vacancies also from the lists, referred to in the sub-rule (1):

If no candidate borne on these lists is available he may make appointment in such vacancies from persons eligible for appointment under these rules. Such appointment shall not last for a period exceeding -

(a)

six months in the case of Register Keeper, Despatcher, and Typist; and

(b)

one year in the case of other posts, or till the next selection whichever is earlier.

19.

Probation.

(1)

A person on appointment to a post in the service in or against a substantive vacancy shall be placed on probation for a period of two years.

(2)

The appointing authority may, for reasons to be recorded, extend the period of probation in individual cases specifying the date up to which the extension is granted :

Provided that save in exceptional circumstances, period of probation shall not be extended beyond one year and in no circumstances beyond two years.

(3)

If it appears to the appointing authority at any time during or at the end of the period of probation or extended period of probation, that a probationer has not made sufficient use of his opportunities or has otherwise failed to give satisfaction he may be reverted to his substantive post, if any, and if he does not hold a lien on any post, his services may be dispensed with.

(4)

A probationer who is reverted or whose services are dispensed with under sub-rule (3) shall not be entitled to any compensation.

(5)

The appointing authority may allow continuous service, rendered in an officiating or temporary capacity, which is included in the cadre or any other equivalent or higher post, to be taken into account for the purpose of computing the period of probation.

20.

Confirmation.

- A probationer shall be confirmed in his appointment at the end of the period of probation or the extended period of probation if-

(a)

his work and conduct are reported to be satisfactory.

(b)

his integrity is certified, and

(c)

the appointing authority is satisfied that he is otherwise fit for confirmation.

21.

Seniority.

- Seniority in any category of post in the service shall be determined from the date of appointment in substantive capacity and if two or more persons are appointed together from the order in which their names are arranged in the appointment order:

Provided that -

(1)

the inter se seniority of persons directly appointed to the service shall be the same as determined at the time of selection;

(2)

the inter se seniority of persons appointed to the service by promotion shall be the same as it was in the substantive post held by them at the time of promotion.

Note. - A candidate directly recruited may lose his seniority if he fails to join without valid reasons when a vacancy is offered to him. The decision of the appointing authority as to the validity of the reasons will be final.

Part VII ? Pay Etc.

22.

Scales of pay.

(1)

The scales of pay admissible to persons appointed to the various categories of posts in the service, whether in a substantive or officiating capacity or as a temporary measure, shall be such as may be determined by the government from time to time.

(2)

The scales of pay at the time of the commencement of these rules are given as follows :

Name of the post

Scales of pay*

(1)

Stenographer (Selection Grade)

Rs. 400-20-500-EB-20-600

(2)

Head Clerk

Rs. 400-15-475-EB-15-550

(3)

Stenographer

Rs. 300-8-324-9-360-EB- 10-440-EB-12-500

(4)

Senior Noter arid Drafter

Rs. 250-7-285-EB-9-375-EB-10-425

(5)

Junior Noter and Drafter/ Record Keeper and Reference Clerk

Rs. 230-6-290-EB-9-335-EB-10-385

(6)

Routine Grade Clerk/Typist/ Register Keeper and Despatcher

Rs. 200-5-250-EB-6-280-EB-8-320

* For Latest Pay Scale please see current G.O.

23.

Pay during probation.

(1)

Notwithstanding any provision, in the Fundamental Rules to the contrary, person on probation, if he is not already in permanent Government service, shall be allowed his first increment in the time scale when he has completed one year of satisfactory service and second increment after two years' service when he has completed the probationary period and is also confirmed:

Provided that if the period of probation is extended on account of failure to give satisfaction, such extension shall not count for increment unless the appointing authority directs otherwise.

(2)

The pay during probation of a person who was already holding a post under the Government shall be regulated by the relevant Fundamental Rules :

Provided that if the period of probation is extended on account of failure to give satisfaction such extension shall not count for increment unless the appointing authority directs otherwise.

(3)

The pay during probation of a person already in permanent Government service shall be regulated by the relevant rules, applicable to Government servants generally serving in connection with the affairs of the State.

24.

Criterion for crossing the efficiency bar.

(1)

For the posts of Stenographer (Selection Grade) and Head Clerk. - No person shall be allowed to cross the efficiency bar for the above unless he is found to have worked steadily and to the best of his ability he is fully capable of discharging his duties assigned to him both by reason of his ability, conduct and strict honesty and unless his integrity is certified.

(2)

For the posts of Senior Noter and Drafter, Stenographer, Junior Noter and Drafter, Record Keeper, Reference Clerk, Typist, Register Keeper and Despatcher. - No person shall be allowed to cross-

(i)

the first efficiency bar unless he is found to have worked steadily and to the best of his ability and unless his integrity is certified.

(ii)

the second efficiency bar unless he is fully capable of discharging his duties assigned to him both by reason of his ability, conduct and strict honesty and unless his integrity is certified.

Part VIII ? Other Provisions

25.

Canvassing.

- No recommendation, either written or oral, other than those required under the rules applicable to the post or service will be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his candidature, will disqualify him for appointment

26.

Regulation of other matters.

- In regard to the matters not specifically covered by these rules or by special orders, persons appointed to the service shall be governed by the rules, regulations and orders applicable generally to Government servants serving in connection with the affairs of the State.

27.

Relaxation from the conditions of service.

- Where the State Government is satisfied that the operation of any rules regulating the conditions of service of persons appointed to the service causes undue hardship in any particular case it may, notwithstanding anything contained in the rules applicable to the case, by order dispense with or relax the requirements of that rule to such extent and subject to such conditions as it may consider necessary for dealing with the case in a just and equitable manner.

28.

Savings.

- Nothing in these rules shall affect reservations and other concessions required to be provided for the Scheduled Castes, Scheduled Tribes and other special categories of persons in accordance with the orders issued by the Government from time to time in this regard.

Appendix 'A'

Strength of Service

Name of post

Permanent

Temporary

Total

1.

Stenographer (Selection Grade)

...

1

-

1

2.

Head Clerk

...

1

2

3

3.

Stenographer

...

1

2

3

4.

Senior other and Drafter

...

5

1

6

5.

Junior Noter, Drafter

...

3

-

3

Reference Clerk and

...

2

-

2

Record Keeper

...

1

-

1

6.

Routine Grade Clerks

Register Keeper

...

1

-

1

Despatcher

...

1

-

1

Typist

...
2
1
3

Appendix 'B'

Syllabus for the Test of Stenographers

The subjects of the test and the maximum marks on each subject shall be as follows :

1.
Shorthand and typing (Hindi)

...
...

100 Marks

2.
Hindi Composition

...
...

50 Marks

3.
Interview

...
...

50 Marks

2. The test in shorthand will consist of dictation of a passage in Hindi for five minutes at the speed of 80 words per minute. One hour will be allowed for transcribing and typing the shorthand record of dictation. The passage will be selected with a view to testing the candidates not only in their speed in shorthand but also in their knowledge of good and idiomatic Hindi. No candidate will be considered to have qualified for employment whose percentage of errors exceeds 5 in the test.

3. The test in Hindi composition will be of two hours' duration. Candidates will be required to write a letter and/or an essay on a subject.

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